Harris County District Court

Cause No. 2025-CV-0033

Carl Lucas, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 23, 2025
Plaintiff's counsel:	Stacy Johnson, Sullivan & Palmer LLP

PARTIES

Plaintiff Carl Lucas is an individual residing in Texas who brings this action for personal injuries sustained in a mtoor vehicle collision. Defendant is an automobile insurance company authorized to conduct business in the State of Texas, which issued the policy of automobile insurance under which Plaintiff seeks benefits and against which Plaintiff asserts the claims set forth below. Defendant may be served through its registered agent for service of process in Texas.

FACTS

On June 23, 2024, Plaintiff was lawfully operating his vehicle through a signalized intersection in Conroe, Texas. At the same time, a vehicle operated by an insured of Defendant entered the intersection and struck the side of Plaintiff's vehicle in a broadside collision. The impact caused Plaintiff's vehicle to spin and come to rest against the curb. Plaintiff was transported from the scene for medical evaluation. Following the collision, Plaintiff submitted a claim to Defendant for benefits and for compensation for his injruies and property damage. Defendant has not paid the claim in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

The at-fault driver failed to keep a proper lookout, failed to yield the right of way, and failed to control speed as a reasonable person would under the same circumstances, in violation of the Texas Transportation Code. Defendant is liable for the negligence of its insured under the terms of the policy and applicable Texas law. Defendant further breached its duty of good faith and fair dealing by failing to promptly and fairly evaluate Plaintiff's claim, failing to adequately investigate the collision, and failing to pay benefits owed when its liability became reasonably clear, in violation of Chapter 541 of the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious knee injury requiring ongoing medical treatment, imaging, physical therapy, and restrictions on his ability to work and perform daily activities. Plaintiff has incurred and will continue to incur medical expenses, lost wages, loss of earning capacity, physical pain, mental anguish, and physical impairment. Plaintiff seeks actual damages, statutory damages, and attorney's fees as permitted by law. Plaintiff demands judgment against Defendant in the amount of $77,000.00, plus pre-judgment and post-judgment interest, costs of court, and such other relief to which Plaintiff may be justly entitled.